

13. 9:00 AM CASE NUMBER: MSC21-02638

CASE NAME: DAVIS VS SCOTT

HEARING ON DEMURRER TO: 3RD AMENDED COMPLAINT

FILED BY: CHICAGO TITLE COMPANY

TENTATIVE RULING:

Defendant Chicago Title Company's demurrer to the twelfth cause of action for negligence is **off calendar** as moot in light of the Court's ruling on the motion to dismiss. Defendant shall prepare and serve the order and notice of entry of order.

14. 9:00 AM CASE NUMBER: N25-0867

CASE NAME: PETITION OF: MORTGAGE LENDER SERVICES, INC

***HEARING ON MOTION IN RE: DISTRIBUTION OF SURPLUS FUNDS**

FILED BY: LEWIS, REBECCA

TENTATIVE RULING:

Before the Court is Rebecca Lewis's Claim to Surplus Funds. The Court notes that there was a May 27, 2025 Claim by Robert I. Reed that appears never to have been resolved. While Lewis's claim does not have the Affidavit of Heirship by Alta Maccabee Reed, Reed's Claim does. On August 3, 2026, Susan Mechtel submitted a substantiated claim, but that claim was not previously set for today. The Court continues all three now-filed claims to September 3 so full documentation can be filed on behalf of all three claimants, and Mechtel's filing has the opportunity to be properly placed on calendar.

15. 9:00 AM CASE NUMBER: N25-2380

CASE NAME: SHYLER ACKLEY VS. CITY OF LAFAYETTE

HEARING ON DEMURRER TO: COMPLAINT

FILED BY: CITY OF LAFAYETTE

TENTATIVE RULING:

Defendant, City of Lafayette, demurs to the petition filed by Shyler Ackley. The demurrer is **sustained without leave to amend**, as discussed below.

I. Background

Petitioner is an uphill neighbor of Nancy Pedneault, owner of "Lot 66." (Petition, ¶1.) Petitioner and twenty-one of his neighbors only access their properties by way of Sessions Road, a 50-foot wide easement that runs through the center of Lot 66. (*Id.* at ¶10.) This easement, and others, are reflected on the subdivision map that established their subdivision, M.S. 502-904. (*Id.* at ¶13.) For decades, because of these easements, Lot 66 was regarded as unbuildable. (*Id.* at ¶14.) In establishing the subdivision, Peter Jakovina opted to burden Lot 66 for the benefit of the other parcels. (*Id.* at ¶15.) Richard Holt, a Planning Commissioner who was on the Commission when the subdivision was approved, purchased Lot 66 from Jakovina while still sitting on the Commission. (*Id.* at ¶17.) Holt later sought a building permit, but was denied following considerable pushback from the uphill residents. (*Id.* at ¶18.)

In 2008, Holt was again unsuccessful in resubmitting an application for a building permit.